

Deed Restrictions

Another way to encumber a property, before we get into easements, is through a **deed restriction**. A deed restriction is a private agreement that impacts the use of the land. A covenant is a type of deed restriction. Covenants and other deed restrictions are usually placed on the land by the owner when the property is sold, and they may be included in the deed itself.

You will often see deed restrictions (which are also known as restrictive covenants) imposed by a developer who wants to maintain specific standards in a subdivision that's still under development. The developer doesn't want early residents in the development to create issues that will impede future sales. For instance, a deed restriction may involve the types and heights of fencing that may be used. Residents may be prohibited from using plastic fencing, parking their recreational vehicles on the street, or placing satellite dishes where they will be in view of the street.

We'll cover deed restrictions in more detail when we discuss land use regulations.